

HOUSE BILL No. 1292

DIGEST OF INTRODUCED BILL

Citations Affected: IC 9-13-2; IC 9-14-13; IC 9-18.1-3-8.5; IC 9-19-13-1; IC 9-21; IC 9-30-3-14; IC 20-27-10-3.5; IC 27-1-22-29; IC 27-4-1-4; IC 34-6-2.1-129; IC 34-28-5-5; IC 36-1-6-3.

Synopsis: Automated traffic enforcement safety devices. Authorizes a county or municipality to adopt and enforce an ordinance that regulates the use of an automated traffic enforcement safety device (device) to detect certain violations. Provides a civil penalty for a violation. Specifies that a civil penalty must first be applied to defray the cost of the installation, operation, and maintenance of the device. Specifies the manner in which the remaining money from the civil penalty must be distributed. Prohibits: (1) reporting a violation on a driving record; (2) using a violation to determine rates for motor vehicle insurance; (3) assessing points under the point system by the bureau of motor vehicles (bureau) for a violation; and (4) reselling data collected by an agent operating a device. Requires notification to the bureau, and the suspension of the registration of a motor vehicle if a violation is not paid. Makes conforming changes.

Effective: July 1, 2026.

Johnson B

January 6, 2026, read first time and referred to Committee on Roads and Transportation.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1292

A BILL FOR AN ACT to amend the Indiana Code concerning motor vehicles.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 9-13-2-2.1 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 2.1. "Agent", for purposes of IC 9-21-3.6, has the**
4 **meaning set forth in IC 9-21-3.6-1.**

5 SECTION 2. IC 9-13-2-6.2 IS ADDED TO THE INDIANA CODE
6 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
7 1, 2026]: **Sec. 6.2. "Automated traffic enforcement safety device",**
8 **for purposes of IC 9-21-3.6, has the meaning set forth in**
9 **IC 9-21-3.6-2.**

10 SECTION 3. IC 9-13-2-110.6 IS ADDED TO THE INDIANA
11 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
12 [EFFECTIVE JULY 1, 2026]: **Sec. 110.6. "Municipality", for**
13 **purposes of IC 9-21-3.6, has the meaning set forth in IC 36-1-2-11.**

14 SECTION 4. IC 9-13-2-121, AS AMENDED BY P.L.164-2020,
15 SECTION 32, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
16 JULY 1, 2026]: Sec. 121. (a) Except as otherwise provided in
17 ~~subsection~~ **subsections (b) and (c), "owner" means a person, other than**



a lienholder, that:

(1) holds the property in or title to, as applicable, a vehicle, manufactured home, mobile home, off-road vehicle, snowmobile, or watercraft; or

(2) is entitled to the use or possession of, as applicable, a vehicle, manufactured home, off-road vehicle, snowmobile, or watercraft, through a lease or other agreement intended to operate as a security.

(b) "Owner" for purposes of IC 9-18.1-14.5, has the meaning set forth in 33 CFR 174.3.

(c) "Owner", for purposes of IC 9-21-3.6, has the meaning set forth in IC 9-21-3.6-4.

SECTION 5. IC 9-13-2-128.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 128.5. "Postsecondary educational institution", for purposes of IC 9-21-3.6, has the meaning set forth in IC 9-21-3.6-5.**

SECTION 6. IC 9-14-13-7, AS ADDED BY P.L.198-2016, SECTION 193, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. The bureau may disclose certain personal information that is not highly restricted personal information if the person requesting the information provides proof of identity and represents that the use of the personal information will be strictly limited to at least one (1) of the following:

(1) For use by a government agency, including a court or law enforcement agency, in carrying out its functions, or a person acting on behalf of a government agency in carrying out its functions, **including an agent in carrying out its responsibilities under IC 9-21-3.6.**

(2) For use in connection with matters concerning:

(A) motor vehicle or driver safety and theft;

(B) motor vehicle emissions;

(C) motor vehicle product alterations, recalls, or advisories;

(D) performance monitoring of motor vehicles, motor vehicle parts, and dealers;

(E) motor vehicle market research activities, including survey research;

(F) the removal of nonowner records from the original owner records of motor vehicle manufacturers; and

(G) motor fuel theft under IC 24-4.6-5.

(3) For use in the normal course of business by a business or its agents, employees, or contractors, but only:



- 1 (A) to verify the accuracy of personal information submitted
2 by an individual to the business or its agents, employees, or
3 contractors; and
4 (B) if information submitted to a business is not correct or is
5 no longer correct, to obtain the correct information only for
6 purposes of preventing fraud by pursuing legal remedies
7 against, or recovering on a debt or security interest against, the
8 individual.
- 9 (4) For use in connection with a civil, a criminal, an
10 administrative, or an arbitration proceeding in a court or
11 government agency or before a self-regulatory body, including the
12 service of process, investigation in anticipation of litigation, and
13 the execution or enforcement of judgments and orders, or under
14 an order of a court.
- 15 (5) For use in research activities, and for use in producing
16 statistical reports, as long as the personal information is not
17 published, redisclosed, or used to contact the individuals who are
18 the subject of the personal information.
- 19 (6) For use by an insurer, an insurance support organization, or a
20 self-insured entity, or the agents, employees, or contractors of an
21 insurer, an insurance support organization, or a self-insured entity
22 in connection with claims investigation activities, anti-fraud
23 activities, rating, or underwriting.
- 24 (7) For use in providing notice to the owners of towed or
25 impounded vehicles.
- 26 (8) For use by a licensed private investigative agency or licensed
27 security service for a purpose allowed under this section.
- 28 (9) For use by an employer or its agent or insurer to obtain or
29 verify information relating to a holder of a commercial driver's
30 license that is required under the Commercial Motor Vehicle
31 Safety Act of 1986 (49 U.S.C. 31131 et seq.).
- 32 (10) For use in connection with the operation of private toll
33 transportation facilities.
- 34 (11) For any use in response to requests for individual motor
35 vehicle records when the bureau has obtained the written consent
36 of the person to whom the personal information pertains.
- 37 (12) For bulk distribution for surveys, marketing, or solicitations
38 when the bureau has obtained the written consent of the person to
39 whom the personal information pertains.
- 40 (13) For use by any person, when the person demonstrates, in a
41 form and manner prescribed by the bureau, that written consent
42 has been obtained from the individual who is the subject of the



information.

(14) For any other use specifically authorized by law that is related to the operation of a motor vehicle or public safety.

However, this section does not affect the use of anatomical gift information on a person's driver's license or identification document issued by the bureau, nor does this section affect the administration of anatomical gift initiatives in Indiana.

SECTION 7. IC 9-14-13-10, AS ADDED BY P.L.198-2016, SECTION 193, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) An authorized recipient of personal information, except a recipient under section 7(11) or 7(12) of this chapter, **and except as provided in subsection (e)**, may resell or redisclose the information for any use allowed under section 7 of this chapter, except for a use under section 7(11) or 7(12) of this chapter.

(b) An authorized recipient of a record under section 7(11) of this chapter may resell or redisclose personal information for any purpose.

(c) An authorized recipient of personal information under IC 9-14-12-8 and section 7(12) of this chapter may resell or redisclose the personal information for use only in accordance with section 7(12) of this chapter.

(d) Except for a recipient under section 7(11) of this chapter, a recipient who resells or rediscloses personal information is required to maintain and make available for inspection to the bureau, upon request, for at least five (5) years, records concerning:

(1) each person that receives the information; and

(2) the permitted use for which the information was obtained.

(e) An agent who carries out responsibilities under IC 9-21-3.6 and is a recipient of personal information under section 7(1) of this chapter may not resell or redisclose the personal information for any purpose.

SECTION 8. IC 9-18.1-3-8.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8.5. (a) **If the bureau receives a referral to suspend the registration of a vehicle under IC 9-21-3.6, the bureau shall suspend the registration of the vehicle used in the ordinance violation until the owner pays the civil penalty and reinstatement fees under IC 9-21-3.6 and subsection (b).**

(b) The bureau may impose a fee to reinstate a registration suspended under this section.

SECTION 9. IC 9-19-13-1, AS AMENDED BY P.L.1-2005, SECTION 101, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) The state school bus



committee established by IC 20-27-3-1 shall adopt and enforce rules under IC 4-22-2 not inconsistent with this chapter to govern the design and operation of all school buses used for the transportation of school children when owned and operated by a school corporation or privately owned and operated under contract with an Indiana school corporation. The rules must by reference be made a part of such a contract with a school corporation. Each school corporation, officer and employee of the school corporation, and person employed under contract by a school district is subject to those rules.

(b) Notwithstanding subsection (a), a school corporation may use an automated traffic enforcement safety device on a school bus under IC 9-21-3.6.

SECTION 10. IC 9-21-3.6 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 3.6. Automated Traffic Enforcement Safety Devices

Sec. 1. As used in this chapter, "agent" means a person that:

- (1) provides services to a county or municipality;**
- (2) operates, maintains, leases, or licenses automated traffic enforcement safety devices as authorized by a county or municipality; or**
- (3) is authorized to review and assemble a recorded image captured by an automated traffic enforcement safety device for review by a police officer employed by a county or municipality.**

Sec. 2. As used in this chapter, "automated traffic enforcement safety device" means a photographic device, radar device, laser device, or other electrical or mechanical device or devices designed to:

- (1) record the speed of a motor vehicle;**
- (2) obtain a clear recorded image of the rear of the motor vehicle and the license plate affixed to the motor vehicle at the time of a violation;**
- (3) indicate on at least one (1) recorded image the date, time, and location of the violation; and**
- (4) undergo an annual calibration check, the results of which are kept on file with the county or municipality that uses the automated traffic enforcement safety device.**

Sec. 3. As used in this chapter, "municipality" means a city or town.

Sec. 4. As used in this chapter, "owner" means a person in whose name a motor vehicle is registered under any of the



following:

- (1) IC 9-18.1.
- (2) The law of another state.
- (3) The law of a foreign country.
- (4) The International Registration Plan.

Sec. 5. As used in this chapter, "postsecondary educational institution" means a postsecondary school that provides an organized program of collegiate study directly creditable toward a baccalaureate degree for at least two (2) years.

Sec. 6. (a) Notwithstanding IC 36-1-3-8(a)(8), a county or municipality may adopt an ordinance to use an automated traffic enforcement safety device to enforce a violation of:

- (1) IC 9-21-12-1(a); or
- (2) a speed limit established under section 11 of this chapter.

(b) An ordinance adopted under subsection (a) must be adopted as follows:

- (1) In a municipality, by the legislative body of the municipality.
- (2) In a county subject to IC 36-2-3.5 or IC 36-3-1, by the legislative body of the county.
- (3) In any other county, by the executive of the county.

(c) An ordinance adopted under subsection (a) is subject to an interlocal agreement under IC 36-1-7.

Sec. 7. A school corporation may enter into an interlocal agreement under IC 36-1-7 with a county or municipality for the installation, operation, notice processing, administration, maintenance, and enforcement of an automated traffic enforcement safety device on a school bus to enforce a violation under this chapter.

Sec. 8. (a) A municipality, county, or school corporation that uses an automated traffic enforcement safety device may enter into a contract with an agent for the installation, operation, notice processing, administration, and maintenance of an automated traffic enforcement safety device.

(b) An agent is not required to be licensed under IC 25-30-1.

(c) The records, documents, and books kept by an agent are not considered public records (as defined in IC 5-14-3-2(r)).

Sec. 9. (a) If a county or municipality adopts an ordinance under section 6 of this chapter, the ordinance must include the following regarding the automated traffic enforcement safety device:

- (1) That an automated traffic enforcement safety device must comply with an international standard for operating an



1 automated traffic enforcement safety device.

2 (2) That the automated traffic enforcement safety device is
3 maintained in accordance with specified self-test performance
4 standards.

5 (3) That an ordinance adopted under this chapter may be
6 challenged pursuant to the requirements of IC 34-13-6.

7 (b) If a county or municipality adopts an ordinance under
8 section 6 of this chapter, the ordinance must include the following
9 regarding a violation:

10 (1) That a police officer employed by the county or
11 municipality:

12 (A) must review and approve an image recorded by the
13 automated traffic enforcement safety device before notice
14 of an ordinance violation may be forwarded to the owner
15 of the motor vehicle; and

16 (B) may not forward notice of an ordinance violation to an
17 owner under clause (A) if, in the opinion of the police
18 officer, it was not possible for the operator of the motor
19 vehicle to safely avoid committing the ordinance violation
20 due to inclement weather conditions.

21 (2) Except as otherwise provided under this chapter, that the
22 owner of a motor vehicle identified through an automated
23 traffic enforcement safety device is liable for the civil penalty
24 for a violation under this chapter.

25 (3) The defenses to a violation under section 14 of this
26 chapter.

27 (4) The civil penalty to be assessed for a violation under
28 section 13 of this chapter.

29 (5) That an owner may pay a civil penalty for a violation by
30 electronic means.

31 (6) That failure to pay the civil penalty for a violation under
32 this chapter will result in the suspension of the registration of
33 the owner's motor vehicle.

34 (7) That a county or municipality may bring an action under
35 IC 36-1-6 to enforce an ordinance or action taken under this
36 chapter.

37 (c) A county or municipality that adopts an ordinance under
38 section 6 of this chapter shall publish notice of the location of each
39 automated traffic enforcement safety device on the website of the
40 county or municipality.

41 Sec. 10. (a) A county or municipality that uses an automated
42 traffic enforcement safety device to detect a violation under this



chapter must install a sign at least five hundred (500) feet before the placement of the automated traffic enforcement safety device.

(b) A sign installed under subsection (a) must:

(1) notify a driver of the existence of the automated traffic enforcement safety device to enforce a violation under this chapter; and

(2) conform to the Indiana Manual on Uniform Traffic Control Devices for Streets and Highways adopted under IC 9-21-2-1.

Sec. 11. A county or municipality may adopt an ordinance to establish a speed limit that is enforced by an automated traffic enforcement safety device under this chapter if the following conditions are met:

(1) The county or municipality, in consultation with the Indiana department of transportation, may establish a speed limit by ordinance on a state highway upon which an elementary school (as defined in IC 20-18-2-4), a high school (as defined in IC 20-18-2-7), or a postsecondary educational institution is located. However, a speed limit adopted by an ordinance under this subdivision is valid only if the following conditions exist:

(A) The speed limit is not less than twenty (20) miles per hour.

(B) The speed zone does not exceed two thousand five hundred (2,500) feet from the perimeter of the school or institution.

(C) The speed zone is properly signed. There must be a sign located where the speed zone begins or as near as practical to the point where the speed zone begins indicating the speed limit.

(D) The Indiana department of transportation has been notified by certified mail regarding the location and speed limit of the speed zone.

(2) A county or municipality may establish a speed limit on a street or highway upon which an elementary school (as defined in IC 20-18-2-4), a high school (as defined in IC 20-18-2-7), or a postsecondary educational institution is located, if the street or highway is under the jurisdiction of the county or municipality, respectively. However, a speed limit adopted by an ordinance under this subdivision is valid only if the following conditions exist:

(A) The speed limit is not less than twenty (20) miles per



hour within an urban district and not less than thirty (30) miles per hour outside an urban district.

(B) The speed zone does not exceed two thousand five hundred (2,500) feet from the perimeter of the school or institution.

(C) The speed zone is properly signed. There must be a sign located where the speed zone begins or as near as practical to the point where the speed zone begins indicating the speed limit. If the school operates on a twelve (12) month schedule, there must be a sign indicating that the school is an all year school.

Sec. 12. (a) A school corporation that uses an automated traffic enforcement safety device to enforce an ordinance adopted under this chapter must forward a recorded image produced by the automated traffic enforcement safety device to the law enforcement agency of the county or municipality in which the school corporation is located for review and approval by a police officer employed by the law enforcement agency before notice of the ordinance violation may be sent to the owner of the motor vehicle.

(b) A police officer described in subsection (a) may not send notice of the ordinance violation to the owner of the motor vehicle if, in the opinion of the police officer, the operator of the motor vehicle could not have safely avoided committing the ordinance violation due to inclement weather conditions.

Sec. 13. (a) Notwithstanding IC 36-1-3-8(a)(10)(B), a county or municipality may impose a civil penalty for an ordinance violation under this chapter in an amount not to exceed two hundred fifty dollars (\$250).

(b) A county or municipality may impose a fee associated with the electronic processing of the civil penalty imposed under subsection (a).

(c) A county or municipality must apply at least fifty percent (50%) of the amount of the civil penalty imposed under subsection (a) to defray the cost to install, operate, and maintain an automated traffic enforcement safety device.

(d) The remaining money from the civil penalty imposed under subsection (a) must be transferred to the general fund of the county or municipality to be used for public safety and infrastructure.

Sec. 14. (a) It is a defense under this chapter if any of the following apply:

(1) The owner provides an affidavit signed under the penalty



1 of perjury stating:

2 (A) the owner of the motor vehicle was engaged in the
3 business of renting or leasing vehicles under written
4 agreements;

5 (B) the motor vehicle was in the care, custody, or control
6 of an individual other than the owner or an employee of
7 the owner under a written agreement for the rental or
8 lease of the motor vehicle for a period of not more than
9 sixty (60) days; and

10 (C) the name and address of the individual who was
11 renting or leasing the motor vehicle;

12 at the time of the alleged violation.

13 (2) The owner provides an affidavit signed under the penalty
14 of perjury stating:

15 (A) the dealer license plate displayed by the motor vehicle
16 was issued to a person licensed under IC 9-32-6;

17 (B) the motor vehicle was in the care, custody, or control
18 of an individual other than the owner or an employee of
19 the owner of the motor vehicle using the dealer license
20 plate as authorized under IC 9-32-6-2 or IC 9-32-6-7; and

21 (C) the name and address of the individual who was using
22 the motor vehicle;

23 at the time of the alleged violation.

24 (3) If the owner provides an affidavit signed under the penalty
25 of perjury stating the owner was not operating the motor
26 vehicle at the time of the alleged violation and the name and
27 address of the individual operating the motor vehicle at the
28 time of the alleged violation.

29 (4) If the owner provides an affidavit signed under the penalty
30 of perjury stating that:

31 (A) the motor vehicle; or

32 (B) the license plate of the motor vehicle;

33 was stolen before the alleged violation occurred and was not
34 under the control or possession of the owner at the time of the
35 alleged violation.

36 (5) The owner was driving an authorized emergency vehicle
37 and did not endanger life or property.

38 (6) The owner was complying with a lawful order or direction
39 of a police officer.

40 (7) The owner yielded the right-of-way to an authorized
41 emergency vehicle.

42 (8) The owner was part of a funeral procession.



(9) A traffic citation was issued to the operator of the motor vehicle, who was not the owner of the motor vehicle, for the ordinance violation by a police officer.

(b) If the owner of a motor vehicle submits the evidence required under subsection (a)(1) through (a)(3), the court shall send by first class mail notice of the violation to the individual identified as the operator of the motor vehicle at the time of the violation.

(c) Proof provided under subsection (a)(1) through (a)(3) creates a rebuttable presumption that the individual identified by the owner as the operator of the motor vehicle at the time of the violation was the individual operating the motor vehicle at the time of the violation.

(d) In addition to an affidavit described in subsection (a)(4), the owner must submit proof that a police report was filed concerning the stolen motor vehicle or stolen license plate.

Sec. 15. (a) Subject to the requirements under IC 36-1-6, a county or municipality shall send by first class mail a notice to the owner of the motor vehicle that the owner failed to contest the violation or pay the civil penalty under this chapter.

(b) A notice under subsection (a) must inform an owner of the following:

(1) That a referral to suspend the registration of the motor vehicle under section 16 of this chapter will be sent to the bureau not later than thirty (30) days after the notice under subsection (a) is mailed if the violation is not paid.

(2) That a referral under section 16 of this chapter will result in the suspension of the registration of the motor vehicle.

Sec. 16. (a) A county or municipality shall give a written referral to suspend the registration of a motor vehicle to the bureau not later than thirty (30) days after the notice under section 15 of this chapter is mailed to the owner of the motor vehicle if the owner has not:

(1) contested the ordinance violation; or

(2) paid the civil penalty.

(b) A referral under subsection (a) must include:

(1) information regarding the name of the owner of the motor vehicle, the license plate number, and registration year;

(2) the date, time, and location of the violation;

(3) the date when the notice required under section 15 of this chapter was mailed; and

(4) the seal of the local authority.



1 **Sec. 17. (a) If the bureau receives a referral under section 16 of**
 2 **this chapter, the bureau shall immediately suspend the registration**
 3 **of the motor vehicle.**

4 **(b) The bureau shall send by first class mail a written notice to**
 5 **the owner not later than thirty (30) days after receiving a referral**
 6 **under section 16 of this chapter that informs the owner of the**
 7 **motor vehicle of:**

8 **(1) the suspension of the registration of the motor vehicle;**

9 **(2) the reason for the suspension; and**

10 **(3) the process by which to have the registration of the motor**
 11 **vehicle reinstated.**

12 **Sec. 18. The bureau shall reinstate the registration of a motor**
 13 **vehicle that is suspended under this chapter if the owner presents**
 14 **the bureau with proof that:**

15 **(1) the civil penalty; and**

16 **(2) the reinstatement fee under IC 9-18.1-3-8.5(b);**
 17 **is paid.**

18 **Sec. 19. (a) A recorded image produced by an automated traffic**
 19 **enforcement safety device that does not show an alleged violation**
 20 **must be destroyed not later than thirty (30) days after the image is**
 21 **recorded, unless otherwise determined by a court order.**

22 **(b) A recorded image produced by an automated traffic**
 23 **enforcement safety device that shows an alleged violation must be**
 24 **destroyed not more than ninety (90) days after the final disposition**
 25 **of the proceeding or payment of the civil penalty, unless otherwise**
 26 **determined by a court order.**

27 **Sec. 20. (a) The bureau may not assess points under the point**
 28 **system for a violation under this chapter.**

29 **(b) A violation under this chapter is not considered to be a**
 30 **traffic offense (as defined in IC 9-13-2-183).**

31 **(c) Information concerning a violation under this chapter may**
 32 **not be included on a driving record established and maintained by**
 33 **the bureau.**

34 **(d) A violation under this chapter may not be used to determine**
 35 **rates for motor vehicle insurance.**

36 **SECTION 11. IC 9-21-5-6, AS AMENDED BY P.L.49-2024,**
 37 **SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE**
 38 **JULY 1, 2026]: Sec. 6. (a) Except as provided in subsections (e) and**
 39 **(f), whenever a local authority in the authority's jurisdiction determines**
 40 **that the maximum speed permitted under this chapter is greater or less**
 41 **than reasonable and safe under the conditions found to exist on a**
 42 **highway or part of a highway, the local authority may determine and**



1 declare a reasonable and safe maximum limit on the highway. The
 2 maximum limit declared under this section may do any of the
 3 following:

4 (1) Decrease the limit within urban districts, but not to less than
 5 twenty (20) miles per hour.

6 (2) Increase the limit within an urban district, but not to more than
 7 fifty-five (55) miles per hour during daytime and fifty (50) miles
 8 per hour during nighttime.

9 (3) Decrease the limit outside an urban district, but not to less
 10 than thirty (30) miles per hour.

11 (4) Decrease the limit in an alley, but to not less than five (5)
 12 miles per hour.

13 (5) Increase the limit in an alley, but to not more than twenty (20)
 14 miles per hour.

15 The local authority must perform an engineering and traffic
 16 investigation before a determination may be made to change a speed
 17 limit under subdivision (2), (3), (4), or (5) or before the speed limit on
 18 a highway with a functional classification of arterial or major collector
 19 within an urban district may be decreased to less than twenty-five (25)
 20 miles per hour under subdivision (1). An engineering and traffic
 21 investigation is not required to decrease the speed limit to twenty (20)
 22 miles per hour on a highway with a functional classification of minor
 23 collector or local road in an urban district.

24 (b) Except as provided in subsection (f), a local authority in the
 25 authority's jurisdiction shall determine by an engineering and traffic
 26 investigation the proper maximum speed for all local streets and shall
 27 declare a reasonable and safe maximum speed permitted under this
 28 chapter for an urban district. However, an engineering and traffic study
 29 is not required to be performed for the local streets in an urban district
 30 under this subsection if the local authority determines that the proper
 31 maximum speed in the urban district is not less than twenty-five (25)
 32 miles per hour.

33 (c) An altered limit established under this section is effective at all
 34 times or during hours of darkness or at other times as may be
 35 determined when appropriate signs giving notice of the altered limit are
 36 erected on the street or highway.

37 (d) Except as provided in this subsection **and notwithstanding**
 38 **IC 9-21-3.6 or IC 36-1-3-8(a)**, a local authority may not alter a speed
 39 limit on a highway or extension of a highway in the state highway
 40 system. A city or town may establish speed limits on state highways
 41 upon which a school is located. However, a speed limit established
 42 under this subsection is valid only if the following conditions exist:



- (1) The limit is not less than twenty (20) miles per hour.
- (2) The limit is imposed only in the immediate vicinity of the school.
- (3) Children are present.
- (4) The speed zone is properly signed. There must be:
 - (A) a sign located:
 - (i) where the reduced speed zone begins; or
 - (ii) as near as practical to the point where the reduced speed zone begins;
 - indicating the reduced speed limit; and
 - (B) a sign located at the end of the reduced speed zone indicating:
 - (i) the speed limit for the section of highway that follows; or
 - (ii) the end of the reduced speed zone.
- (5) The Indiana department of transportation has been notified of the limit imposed by certified mail.
- (e) A local authority may decrease a limit on a street to not less than fifteen (15) miles per hour if the following conditions exist:
 - (1) The street is located within a park or playground established under IC 36-10.
 - (2) The:
 - (A) board established under IC 36-10-3;
 - (B) board established under IC 36-10-4; or
 - (C) park authority established under IC 36-10-5;
 - requests the local authority to decrease the limit.
 - (3) The speed zone is properly signed.
- (f) A city, town, or county may establish speed limits on a street or highway upon which a school is located if the street or highway is under the jurisdiction of the city, town, or county, respectively. However, a speed limit established under this subsection is valid only if the following conditions exist:
 - (1) The limit is not less than twenty (20) miles per hour.
 - (2) The limit is imposed only in the immediate vicinity of the school.
 - (3) Children are present.
 - (4) The speed zone is properly signed. There must be:
 - (A) a sign located where the reduced speed zone begins or as near as practical to the point where the reduced speed zone begins indicating the reduced speed limit and a sign located at the end of the reduced speed zone indicating the end of the reduced speed zone; and
 - (B) if the school operates on a twelve (12) month schedule, a



sign indicating that the school is an all year school.

Notwithstanding IC 36-1-3-8(a), a city, town, or county may establish speed limits on a street or highway upon which a school is located if the street or highway is under the jurisdiction of the city, town, or county, respectively, under IC 9-21-3.6.

(g) Except as provided in subsection (h), a person who exceeds a speed limit established by a local authority under this section commits a Class C infraction.

(h) A person who exceeds a speed limit that is established under subsection (d) or (f) commits a Class B infraction.

SECTION 12. IC 9-21-12-1, AS AMENDED BY P.L.144-2019, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) A person who drives a vehicle that:

(1) meets or overtakes from any direction a school bus stopped on a roadway or a private road and is not stopped before reaching the school bus when the arm signal device specified in IC 9-21-12-13 is in the device's extended position; or

(2) proceeds before the arm signal device is no longer extended; commits a Class A infraction.

(b) In addition to any other penalty imposed under this section, the court may suspend the person's driving privileges:

(1) for ninety (90) days; or

(2) if the person has committed at least one (1) previous offense under this section or IC 9-21-8-52(b), for one (1) year.

(c) This section is applicable only if the school bus is in substantial compliance with the markings required by the state school bus committee.

(d) There is a rebuttable presumption that the owner of the vehicle involved in the violation of this section committed the violation. This presumption does not apply to the owner of a vehicle involved in the violation of this section if the owner routinely engages in the business of renting the vehicle for periods of thirty (30) days or less.

(e) A violation of subsection (a) may be enforced under IC 9-21-3.6.

SECTION 13. IC 9-30-3-14, AS AMENDED BY P.L.111-2021, SECTION 87, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. **This section does not apply to a violation of an ordinance adopted under IC 9-21-3.6.** If a court convicts a person for a moving traffic offense and the person is known or believed by the court not to be the owner of the motor vehicle, the court shall, within seven (7) days after entering the conviction, deposit with the United States Postal Service, first class postage prepaid, notice addressed to



the owner of the motor vehicle giving the owner the following information:

- (1) The name and address of the person convicted.
- (2) The name and address of the owner of the motor vehicle.
- (3) The offense upon which the conviction was made.
- (4) The date of arrest of the person convicted and the location of the place of the offense.
- (5) The license plate number of the motor vehicle.
- (6) The driver's or chauffeur's license number of the person convicted.
- (7) The date of the conviction and the name of the court making the conviction.

SECTION 14. IC 20-27-10-3.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 3.5. A school corporation may use an automated traffic enforcement safety device on a school bus in accordance with IC 9-21-3.6.**

SECTION 15. IC 27-1-22-29 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 29. (a) As used in this section, "motor vehicle insurance" means any type of insurance described in IC 27-1-5-1, Class 2(f).**

(b) As used in this section, "rating plan" means the rating schedule or rating plan of an insurer concerning premium rates for motor vehicle insurance that has been filed with the commissioner and is in effect under section 4 of this chapter.

(c) An insurer may not set the premium rate for a policy of motor vehicle insurance for an individual who has committed a violation under:

(1) IC 9-21-3.6; or

(2) IC 9-21-12-1(a) enforced under IC 9-21-3.6;

at an amount higher than the applicable rate set forth in the rating plan due to the fact that the individual has committed a violation of an ordinance adopted under IC 9-21-3.6, or of IC 9-21-12-1(a) enforced under IC 9-21-3.6.

(d) A violation of this section is an unfair and deceptive act or practice in the business of insurance under IC 27-4-1-4.

SECTION 16. IC 27-4-1-4, AS AMENDED BY P.L.158-2024, SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4. (a) The following are hereby defined as unfair methods of competition and unfair and deceptive acts and practices in the business of insurance:**



- 1 (1) Making, issuing, circulating, or causing to be made, issued, or
- 2 circulated, any estimate, illustration, circular, or statement:
- 3 (A) misrepresenting the terms of any policy issued or to be
- 4 issued or the benefits or advantages promised thereby or the
- 5 dividends or share of the surplus to be received thereon;
- 6 (B) making any false or misleading statement as to the
- 7 dividends or share of surplus previously paid on similar
- 8 policies;
- 9 (C) making any misleading representation or any
- 10 misrepresentation as to the financial condition of any insurer,
- 11 or as to the legal reserve system upon which any life insurer
- 12 operates;
- 13 (D) using any name or title of any policy or class of policies
- 14 misrepresenting the true nature thereof; or
- 15 (E) making any misrepresentation to any policyholder insured
- 16 in any company for the purpose of inducing or tending to
- 17 induce such policyholder to lapse, forfeit, or surrender the
- 18 policyholder's insurance.
- 19 (2) Making, publishing, disseminating, circulating, or placing
- 20 before the public, or causing, directly or indirectly, to be made,
- 21 published, disseminated, circulated, or placed before the public,
- 22 in a newspaper, magazine, or other publication, or in the form of
- 23 a notice, circular, pamphlet, letter, or poster, or over any radio or
- 24 television station, or in any other way, an advertisement,
- 25 announcement, or statement containing any assertion,
- 26 representation, or statement with respect to any person in the
- 27 conduct of the person's insurance business, which is untrue,
- 28 deceptive, or misleading.
- 29 (3) Making, publishing, disseminating, or circulating, directly or
- 30 indirectly, or aiding, abetting, or encouraging the making,
- 31 publishing, disseminating, or circulating of any oral or written
- 32 statement or any pamphlet, circular, article, or literature which is
- 33 false, or maliciously critical of or derogatory to the financial
- 34 condition of an insurer, and which is calculated to injure any
- 35 person engaged in the business of insurance.
- 36 (4) Entering into any agreement to commit, or individually or by
- 37 a concerted action committing any act of boycott, coercion, or
- 38 intimidation resulting or tending to result in unreasonable
- 39 restraint of, or a monopoly in, the business of insurance.
- 40 (5) Filing with any supervisory or other public official, or making,
- 41 publishing, disseminating, circulating, or delivering to any person,
- 42 or placing before the public, or causing directly or indirectly, to



1 be made, published, disseminated, circulated, delivered to any
 2 person, or placed before the public, any false statement of
 3 financial condition of an insurer with intent to deceive. Making
 4 any false entry in any book, report, or statement of any insurer
 5 with intent to deceive any agent or examiner lawfully appointed
 6 to examine into its condition or into any of its affairs, or any
 7 public official to which such insurer is required by law to report,
 8 or which has authority by law to examine into its condition or into
 9 any of its affairs, or, with like intent, willfully omitting to make a
 10 true entry of any material fact pertaining to the business of such
 11 insurer in any book, report, or statement of such insurer.

12 (6) Issuing or delivering or permitting agents, officers, or
 13 employees to issue or deliver, agency company stock or other
 14 capital stock, or benefit certificates or shares in any common law
 15 corporation, or securities or any special or advisory board
 16 contracts or other contracts of any kind promising returns and
 17 profits as an inducement to insurance.

18 (7) Making or permitting any of the following:

19 (A) Unfair discrimination between individuals of the same
 20 class and equal expectation of life in the rates or assessments
 21 charged for any contract of life insurance or of life annuity or
 22 in the dividends or other benefits payable thereon, or in any
 23 other of the terms and conditions of such contract. However,
 24 in determining the class, consideration may be given to the
 25 nature of the risk, plan of insurance, the actual or expected
 26 expense of conducting the business, or any other relevant
 27 factor.

28 (B) Unfair discrimination between individuals of the same
 29 class involving essentially the same hazards in the amount of
 30 premium, policy fees, assessments, or rates charged or made
 31 for any policy or contract of accident or health insurance or in
 32 the benefits payable thereunder, or in any of the terms or
 33 conditions of such contract, or in any other manner whatever.
 34 However, in determining the class, consideration may be given
 35 to the nature of the risk, the plan of insurance, the actual or
 36 expected expense of conducting the business, or any other
 37 relevant factor.

38 (C) Excessive or inadequate charges for premiums, policy
 39 fees, assessments, or rates, or making or permitting any unfair
 40 discrimination between persons of the same class involving
 41 essentially the same hazards, in the amount of premiums,
 42 policy fees, assessments, or rates charged or made for:



- (i) policies or contracts of reinsurance or joint reinsurance, or abstract and title insurance;
- (ii) policies or contracts of insurance against loss or damage to aircraft, or against liability arising out of the ownership, maintenance, or use of any aircraft, or of vessels or craft, their cargoes, marine builders' risks, marine protection and indemnity, or other risks commonly insured under marine, as distinguished from inland marine, insurance; or
- (iii) policies or contracts of any other kind or kinds of insurance whatsoever.

However, nothing contained in clause (C) shall be construed to apply to any of the kinds of insurance referred to in clauses (A) and (B) nor to reinsurance in relation to such kinds of insurance. Nothing in clause (A), (B), or (C) shall be construed as making or permitting any excessive, inadequate, or unfairly discriminatory charge or rate or any charge or rate determined by the department or commissioner to meet the requirements of any other insurance rate regulatory law of this state.

(8) Except as otherwise expressly provided by IC 27-1-47 or another law, knowingly permitting or offering to make or making any contract or policy of insurance of any kind or kinds whatsoever, including but not in limitation, life annuities, or agreement as to such contract or policy other than as plainly expressed in such contract or policy issued thereon, or paying or allowing, or giving or offering to pay, allow, or give, directly or indirectly, as inducement to such insurance, or annuity, any rebate of premiums payable on the contract, or any special favor or advantage in the dividends, savings, or other benefits thereon, or any valuable consideration or inducement whatever not specified in the contract or policy; or giving, or selling, or purchasing or offering to give, sell, or purchase as inducement to such insurance or annuity or in connection therewith, any stocks, bonds, or other securities of any insurance company or other corporation, association, limited liability company, or partnership, or any dividends, savings, or profits accrued thereon, or anything of value whatsoever not specified in the contract. Nothing in this subdivision and subdivision (7) shall be construed as including within the definition of discrimination or rebates any of the following practices:

- (A) Paying bonuses to policyholders or otherwise abating their premiums in whole or in part out of surplus accumulated from nonparticipating insurance, so long as any such bonuses or



1 abatement of premiums are fair and equitable to policyholders
 2 and for the best interests of the company and its policyholders.

3 (B) In the case of life insurance policies issued on the
 4 industrial debit plan, making allowance to policyholders who
 5 have continuously for a specified period made premium
 6 payments directly to an office of the insurer in an amount
 7 which fairly represents the saving in collection expense.

8 (C) Readjustment of the rate of premium for a group insurance
 9 policy based on the loss or expense experience thereunder, at
 10 the end of the first year or of any subsequent year of insurance
 11 thereunder, which may be made retroactive only for such
 12 policy year.

13 (D) Paying by an insurer or insurance producer thereof duly
 14 licensed as such under the laws of this state of money,
 15 commission, or brokerage, or giving or allowing by an insurer
 16 or such licensed insurance producer thereof anything of value,
 17 for or on account of the solicitation or negotiation of policies
 18 or other contracts of any kind or kinds, to a broker, an
 19 insurance producer, or a solicitor duly licensed under the laws
 20 of this state, but such broker, insurance producer, or solicitor
 21 receiving such consideration shall not pay, give, or allow
 22 credit for such consideration as received in whole or in part,
 23 directly or indirectly, to the insured by way of rebate.

24 (9) Requiring, as a condition precedent to loaning money upon the
 25 security of a mortgage upon real property, that the owner of the
 26 property to whom the money is to be loaned negotiate any policy
 27 of insurance covering such real property through a particular
 28 insurance producer or broker or brokers. However, this
 29 subdivision shall not prevent the exercise by any lender of the
 30 lender's right to approve or disapprove of the insurance company
 31 selected by the borrower to underwrite the insurance.

32 (10) Entering into any contract, combination in the form of a trust
 33 or otherwise, or conspiracy in restraint of commerce in the
 34 business of insurance.

35 (11) Monopolizing or attempting to monopolize or combining or
 36 conspiring with any other person or persons to monopolize any
 37 part of commerce in the business of insurance. However,
 38 participation as a member, director, or officer in the activities of
 39 any nonprofit organization of insurance producers or other
 40 workers in the insurance business shall not be interpreted, in
 41 itself, to constitute a combination in restraint of trade or as
 42 combining to create a monopoly as provided in this subdivision



and subdivision (10). The enumeration in this chapter of specific unfair methods of competition and unfair or deceptive acts and practices in the business of insurance is not exclusive or restrictive or intended to limit the powers of the commissioner or department or of any court of review under section 8 of this chapter.

(12) Requiring as a condition precedent to the sale of real or personal property under any contract of sale, conditional sales contract, or other similar instrument or upon the security of a chattel mortgage, that the buyer of such property negotiate any policy of insurance covering such property through a particular insurance company, insurance producer, or broker or brokers. However, this subdivision shall not prevent the exercise by any seller of such property or the one making a loan thereon of the right to approve or disapprove of the insurance company selected by the buyer to underwrite the insurance.

(13) Issuing, offering, or participating in a plan to issue or offer, any policy or certificate of insurance of any kind or character as an inducement to the purchase of any property, real, personal, or mixed, or services of any kind, where a charge to the insured is not made for and on account of such policy or certificate of insurance. However, this subdivision shall not apply to any of the following:

(A) Insurance issued to credit unions or members of credit unions in connection with the purchase of shares in such credit unions.

(B) Insurance employed as a means of guaranteeing the performance of goods and designed to benefit the purchasers or users of such goods.

(C) Title insurance.

(D) Insurance written in connection with an indebtedness and intended as a means of repaying such indebtedness in the event of the death or disability of the insured.

(E) Insurance provided by or through motorists service clubs or associations.

(F) Insurance that is provided to the purchaser or holder of an air transportation ticket and that:

(i) insures against death or nonfatal injury that occurs during the flight to which the ticket relates;

(ii) insures against personal injury or property damage that occurs during travel to or from the airport in a common carrier immediately before or after the flight;



- 1 (iii) insures against baggage loss during the flight to which
- 2 the ticket relates; or
- 3 (iv) insures against a flight cancellation to which the ticket
- 4 relates.
- 5 (14) Refusing, because of the for-profit status of a hospital or
- 6 medical facility, to make payments otherwise required to be made
- 7 under a contract or policy of insurance for charges incurred by an
- 8 insured in such a for-profit hospital or other for-profit medical
- 9 facility licensed by the Indiana department of health.
- 10 (15) Refusing to insure an individual, refusing to continue to issue
- 11 insurance to an individual, limiting the amount, extent, or kind of
- 12 coverage available to an individual, or charging an individual a
- 13 different rate for the same coverage, solely because of that
- 14 individual's blindness or partial blindness, except where the
- 15 refusal, limitation, or rate differential is based on sound actuarial
- 16 principles or is related to actual or reasonably anticipated
- 17 experience.
- 18 (16) Committing or performing, with such frequency as to
- 19 indicate a general practice, unfair claim settlement practices (as
- 20 defined in section 4.5 of this chapter).
- 21 (17) Between policy renewal dates, unilaterally canceling an
- 22 individual's coverage under an individual or group health
- 23 insurance policy solely because of the individual's medical or
- 24 physical condition.
- 25 (18) Using a policy form or rider that would permit a cancellation
- 26 of coverage as described in subdivision (17).
- 27 (19) Violating IC 27-1-22-25, IC 27-1-22-26, or IC 27-1-22-26.1
- 28 concerning motor vehicle insurance rates.
- 29 (20) Violating IC 27-8-21-2 concerning advertisements referring
- 30 to interest rate guarantees.
- 31 (21) Violating IC 27-8-24.3 concerning insurance and health plan
- 32 coverage for victims of abuse.
- 33 (22) Violating IC 27-8-26 concerning genetic screening or testing.
- 34 (23) Violating IC 27-1-15.6-3(b) concerning licensure of
- 35 insurance producers.
- 36 (24) Violating IC 27-1-38 concerning depository institutions.
- 37 (25) Violating IC 27-8-28-17(c) or IC 27-13-10-8(c) concerning
- 38 the resolution of an appealed grievance decision.
- 39 (26) Violating IC 27-8-5-2.5(e) through IC 27-8-5-2.5(j) (expired
- 40 July 1, 2007, and removed) or IC 27-8-5-19.2 (expired July 1,
- 41 2007, and repealed).
- 42 (27) Violating IC 27-2-21 concerning use of credit information.



(28) Violating IC 27-4-9-3 concerning recommendations to consumers.

(29) Engaging in dishonest or predatory insurance practices in marketing or sales of insurance to members of the United States Armed Forces as:

(A) described in the federal Military Personnel Financial Services Protection Act, P.L.109-290; or

(B) defined in rules adopted under subsection (b).

(30) Violating IC 27-8-19.8-20.1 concerning stranger originated life insurance.

(31) Violating IC 27-2-22 concerning retained asset accounts.

(32) Violating IC 27-8-5-29 concerning health plans offered through a health benefit exchange (as defined in IC 27-19-2-8).

(33) Violating a requirement of the federal Patient Protection and Affordable Care Act (P.L. 111-148), as amended by the federal Health Care and Education Reconciliation Act of 2010 (P.L. 111-152), that is enforceable by the state.

(34) After June 30, 2015, violating IC 27-2-23 concerning unclaimed life insurance, annuity, or retained asset account benefits.

(35) Willfully violating IC 27-1-12-46 concerning a life insurance policy or certificate described in IC 27-1-12-46(a).

(36) Violating IC 27-1-37-7 concerning prohibiting the disclosure of health care service claims data.

(37) Violating IC 27-4-10-10 concerning virtual claims payments.

(38) Violating IC 27-1-24.5 concerning pharmacy benefit managers.

(39) Violating IC 27-7-17-16 or IC 27-7-17-17 concerning the marketing of travel insurance policies.

(40) Violating IC 27-1-49 concerning individual prescription drug rebates.

(41) Violating IC 27-1-50 concerning group prescription drug rebates.

(42) Violating IC 27-1-22-29 concerning the premium rate for a policy of motor vehicle insurance if an individual has committed a violation under IC 9-21-3.6 or enforced under IC 9-21-3.6.

(b) Except with respect to federal insurance programs under Subchapter III of Chapter 19 of Title 38 of the United States Code, the commissioner may, consistent with the federal Military Personnel Financial Services Protection Act (10 U.S.C. 992 note), adopt rules under IC 4-22-2 to:



(1) define; and
 (2) while the members are on a United States military installation or elsewhere in Indiana, protect members of the United States Armed Forces from; dishonest or predatory insurance practices.

SECTION 17. IC 34-6-2.1-129, AS ADDED BY P.L.186-2025, SECTION 176, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 129. "Moving traffic violation", for purposes of IC 34-28-5, means a violation of:

(1) a statute defining an infraction; or
 (2) an ordinance, **other than a violation under IC 9-21-3.6;** that applies when a motor vehicle is in motion.

SECTION 18. IC 34-28-5-5, AS AMENDED BY P.L.173-2025, SECTION 34, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) A defendant against whom a judgment is entered is liable for costs. Costs are part of the judgment and may not be suspended except under IC 9-30-3-12. Whenever a judgment is entered against a person for the commission of two (2) or more civil violations (infractions or ordinance violations), the court may waive the person's liability for costs for all but one (1) of the violations. This subsection does not apply to judgments entered for violations constituting:

(1) Class D infractions; or
 (2) Class C infractions for unlawfully parking in a space reserved for a person with a physical disability under IC 5-16-9-5 or IC 5-16-9-8.
 (b) If a judgment is entered:
 (1) for a violation constituting:
 (A) a Class D infraction; or
 (B) a Class C infraction for unlawfully parking in a space reserved for a person with a physical disability under IC 5-16-9-5 or IC 5-16-9-8; or
 (2) in favor of the defendant in any case;
 the defendant is not liable for costs.

(c) Except for costs, and except as provided in subsections (e), **and** (f), **and (g)**, and IC 9-21-5-11(e), the funds collected as judgments for violations of statutes defining infractions shall be deposited in the state general fund.

(d) A judgment may be entered against a defendant under this section or section 4 of this chapter upon a finding by the court that the defendant:

(1) violated:



- 1 (A) a statute defining an infraction; or
 2 (B) an ordinance; or
 3 (2) consents to entry of judgment for the plaintiff upon a pleading
 4 of nolo contendere for a moving traffic violation.
 5 (e) The funds collected for an infraction judgment described in
 6 section 4(h) of this chapter shall be transferred to a dedicated county
 7 fund. The money in the dedicated county fund does not revert to the
 8 county general fund or state general fund and may be used, after
 9 appropriation by the county fiscal body, only for the following
 10 purposes:
 11 (1) To pay compensation of commissioners appointed under
 12 IC 33-33-49.
 13 (2) To pay costs of the county's guardian ad litem program.
 14 (f) The funds collected for an infraction judgment described in
 15 section 4(i) of this chapter shall be transferred to a dedicated toll
 16 revenue fund created as part of a project that is located within a
 17 metropolitan planning area (as defined by 23 U.S.C. 134) and that
 18 connects the state of Indiana with the commonwealth of Kentucky. The
 19 money in the fund does not revert to the county general fund or state
 20 general fund and may be used only to pay the cost of operating,
 21 maintaining, and repairing the tolling system for a project that is
 22 located within a metropolitan planning area (as defined by 23 U.S.C.
 23 134) and that connects the state of Indiana with the commonwealth of
 24 Kentucky, including major repairs, replacements, and improvements.
 25 **(g) This subsection applies only to a violation of IC 9-21-12-1(a)**
 26 **that is enforced through IC 9-21-3.6. Notwithstanding subsection**
 27 **(c), a civil penalty collected for a violation of IC 9-21-12-1(a) as a**
 28 **judgment against a person to whom this subsection applies shall be**
 29 **transferred in accordance with IC 9-21-3.6. To the extent a person**
 30 **to whom this subsection applies is liable for costs for a violation of**
 31 **IC 9-21-12-1(a), the costs may be deducted only from the judgment**
 32 **and may not cause the person to be liable for an amount greater**
 33 **than the civil penalty under IC 9-21-3.6.**
 34 SECTION 19. IC 36-1-6-3 IS AMENDED TO READ AS
 35 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) Certain
 36 ordinances may be enforced by a municipal corporation without
 37 proceeding in court through:
 38 (1) an admission of violation before the violations clerk under
 39 IC 33-36; or
 40 (2) administrative enforcement under section 9 of this chapter.
 41 (b) Except as provided in subsection (a), a proceeding to enforce an
 42 ordinance must be brought in accordance with IC 34-28-5, section 4 of



1 this chapter, or both.

2 (c) An ordinance defining a moving traffic violation may not be
3 enforced under IC 33-36 and must be enforced in accordance with
4 IC 34-28-5.

5 (d) **An ordinance adopted under IC 9-21-3.6 may be enforced**
6 **under IC 33-36 or IC 34-28-5.**

